

****February 27, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing has completed, in February of the current year, an investigation into the operator Velvet Medical SRL and has found a violation of the provisions of Article 12 paragraphs (1) - (4) of the General Data Protection Regulation (GDPR), in relation to Article 15 paragraph (3) of the GDPR. As such, the operator has been sanctioned with a fine of 4,976.4 lei, equivalent to 1,000 EURO.

The investigation was initiated following a complaint in which the petitioner reported the refusal of the operator Velvet Medical SRL to comply with their request to receive medical data, specifically the documents from their medical file. Subsequently, the petitioner submitted a new request for access to their data; however, the operator did not respond this time either.

During the course of the investigation, the National Authority for Supervision found that Velvet Medical SRL did not provide evidence indicating that it had responded to the petitioner's request to exercise their right of access to their medical data.

It was also found that the operator did not present evidence of communication of a proper and complete response to the second access request made by the petitioner to the operator, thus violating the provisions of Article 12 paragraphs (1) - (4) of the GDPR, in relation to Article 15 paragraph (3) of the GDPR.

At the same time, based on the provisions of Article 58 paragraph (2) letters c) and d) of Regulation (EU) 2016/679, the following corrective measures were ordered for the operator Velvet Medical SRL:

- to provide a complete response to the petitioner's request via email, from the official address of the operator, by securely communicating the requested personal data, in accordance with the provisions of Article 15 paragraphs (3) and (4) of the GDPR;
- to ensure compliance with the GDPR regarding the processing operations of personal data, by adopting the necessary technical and organizational measures, including appropriate training of the designated personnel for this purpose, so that the operator is able to analyze, correctly resolve, and appropriately respond to requests from data subjects exercising their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****